IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

CA(CAA)/03(CHE)/2022

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Arrangement*

of

M/s.PRAXIFY TECHNOLOGIES INDIA PRIVATE LIMITED
(CIN: U72200TN2015PTC141428)
Block A,Floor 9,Global Infocity Park
Dr. MGR Road, Kandanchavadi
Perungudi, Chennai, TN 600096

...Applicant/ Transferor Company – 1

And

M/s. RAZORINSIGHTS TECHNOLOGY PRIVATE LIMITED
(CIN: U72300TN2014FTC141612)
Module 3&4, 9th Floor, Block A
Global Infocity Park Plot No.40
MGR Salai, Kandanchavadi
Perungudi, Chennai, TN600096

...Applicant/ Transferor Company - 2

And

M/s. ATHENAHEALTH TECHNOLOGY PRIVATE LIMITED
(CIN: U72200TN2005PTC057276)
#40, Module No,3&4,9th Floor
A-Block MGR Road Global Infocity Park
Kandachavadi,Perungudi
Chennai, TN 600096

... Transferee Company

Order Pronounced on ***20th April 2022***

CORAM

R.SUCHARITHA,MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): R.Inbaraju (Advocate)

ORDER

Per: R.SUCHARITHA, MEMBER (JUDICIAL)

This is a joint application filed by the Applicant Companies, namely PRAXIFY TECHNOLOGIES INDIA PRIVATE LIMITED(for brevity "Transferor Company-1") and RAZORINSIGHTS TECHNOLOGY PRIVATE LIMITED(for brevity "Transferor Company-2")withATHENAHEALTH TECHNOLOGY PRIVATE LIMITED (for brevity "Transferee Company") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to asthe "SCHEME") proposed by the Applicant Companies. The saidScheme is also annexed to the Application.

2. The Applicant Companies in this Company Application hassought for dispensation of the meeting of the Equity

Shareholders and Creditors of the Transferor Company No.1, Transferor Company No.2 and Transferee Company.

3. An affidavit in support of the above application is sworn forand behalf of the Transferor Companies and the Transferee Company by one Mr. Sasidharan in the capacity as the Director, along with the application and it is also represented that the Registered office of the Applicant Company is situated within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

4.**PRAXIFY TECHNOLOGIES INDIA PRIVATE LIMITED (TRANSFEROR COMPANY - 1)**

(i)There are 2 (Two) Equity Shareholders and thecertificate issued by the Chartered Accountants to this effect is placed at page 263 of the typed set filed with the application and also the consent by way of Affidavits given by both the Equity Shareholders are placed at page 264 to272 and sought for dispensation with holding of meeting.

(ii) There is NIL Secured Creditor and the certificate issued by the Chartered Accountant to this effect is

placed at page 273 of the typed set and consent affidavits are also filed along with the Application. Hence the necessity of conduct of meeting does not arise.

(iii) There is NIL Unsecured Loan Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page 274 of the typed set filed with the Application.Hence the necessity of conduct of meeting does not arise.

(iv)There is NIL Unsecured Trade Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 275 of the typed set filed along with the Application.Hence the necessity of conduct of meeting does not arise.

5. **RAZORINSIGHTS TECHNOLOGY PRIVATE LIMITED (TRANSFEROR COMPANY – 2)**

(i) There are 3 (Three) Equity Shareholders and the certificate issued by the Chartered Accountants to

this effect is placed at page 276 of the typed set filed with the application and also consent Affidavits are also filed along with the Applicationand sought for dispensation with holding of meeting.

(ii) There is NIL Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 292 of the typed set filed along with the Application. Hence the necessity of conduct of meeting does not arise.

(iii) There is NIL Unsecured Loan Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page 293of the typed set filed with the Application.Hence the necessity of conduct of meeting does not arise.

(iv) There are 2 (Two) Unsecured Trade Creditors and the certificate issued by the Chartered Accountant to this effect is placed at page 294 of the typed setand also the Consent Affidavits given by the both Unsecured Trade Creditors are also

filed along with the application and sought for dispensation with holding of meeting.

6. **ATHENAHELATH TECHNOLOGY PRIVATE LIMITED (TRANSFEREE COMPANY)**

(i) There are 2 (Two) Equity Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 307 of the typed set filed with the application and also the consent by way of Affidavits given by the two Equity Shareholders are enclosed along with the application and sought for dispensation with holding of meeting.

(ii) There is NIL Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 320 of the typed set filed along with the Application. Hence the necessity of conduct of meeting does not arise.

(iii) There is 1 (One) Unsecured Loan Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page 321 of the typed set filed with the application and also the consent by way of

Affidavit given byOneUnsecured Loan Creditor is placed along with the application and sought for dispensation with holding of meeting.

(iv) There is 1 (One) Unsecured Trade Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 328 of the typed set filed along with the applicationand also the consent by way of Affidavit given by One Unsecured Trade Creditor is placed at page 329 to 333 and sought for dispensation with holding of meeting.

7. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

8. From the certificate of incorporation filed, it is evident that the Transferor Company - 1 is a Private Limited company incorporated under the provisions of Companies Act, 2013 on 20.07.2015. The Authorized Share Capital of the Transferor Company - 1 is Rs.50,00,000/- (Rupees Fifty Lakh Only) consisting of 5,00,000 Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor

Company is Rs. 1,00,000/- (Rupees OneLakh Only) consisting of 10,000 Equity Shares of Rs.10/- each.

9. From the certificate of incorporation filed, it is evident that the Transferor Company - 2 is a Private Limited company incorporated under the provisions of Companies Act, 2013 on 24.06.2014. The Authorized Share Capital of the Transferor Company - 2 is Rs.10,00,000/- (Rupees Ten Lakh Only) consisting of 1,00,000 Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company is Rs. 10,00,000/- (Rupees Ten Lakh Only) consisting of 1,00,000 Equity Shares of Rs.10/- each.

10. From the certificate of incorporation filed, it is evident that Transferee Company is a Private limited company incorporated under the provisions of Companies Act, 1956 on 24.08.2005. The Authorized Share Capital of the Transferee Company is Rs.5,00,00,000/- (Rupees Five Crores Only) consisting of 50,00,000 Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company is Rs. 9,00,000/- (Rupees Nine Lakh Only) consisting of 90,000 Equity Shares of Rs.10/- each.

11. The Applicant Companies have filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2021 and Unaudited Financial Statements upto 30.09.2021.

12. The Board of Directors of the Applicant Companies vide meeting held on 07th and 15th December 2021 has unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the Applicant companies.

13. The Appointed date as specified in the Scheme is 1st April 2021.

14. The Statutory Auditors of the Transferor Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificate of the StatutoryAuditors issued in this regard is placed at pages 368 of the typed set filed along with the Application.

15. Taking into consideration theapplication filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal proposes to issue the following directions:-

A) IN RELATION TO THE TRANSFEROR COMPANY - 1:

(i) With respect to Equity Shareholders:

Since it is represented by the Transferor Company – 1 that there are 2 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

(ii) With respect to Secured Creditors:

Since it is represented by the Transferor Company - 1 that there are NIL Secured Creditors and hence the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Loan Creditors:

Since it is represented by the Transferor Company – 1 that there are NIL Unsecured Loan Creditors and hence the necessity of convening a meeting does not arise.

(iv) With respect to Unsecured Trade Creditors:

Since it is represented by the Transferor Company – 1 that there are NIL Unsecured Trade Creditors and hence the necessity of convening a meeting does not arise.

B) IN RELATION TO THE TRANSFEROR COMPANY - 2:

(i) With respect to Equity Shareholders:

Since it is represented by the Transferor Company – 2 that there are 3 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

(ii) With respect to Secured Creditors:

Since it is represented by the Transferor Company - 2 that there are NIL Secured Creditors and hence the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Loan Creditors:

Since it is represented by the Transferor Company – 2that there are NIL Unsecured Loan Creditors and hence the necessity of convening a meeting does not arise.

(iv) With respect to Unsecured Trade Creditors:

Since it is represented by the Transferor Company – 2 that there are 2 Unsecured Trade Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

C) IN RELATION TO THE TRANSFEREE COMPANY:

(i) With respect to Equity Shareholders:

Since it is represented by the Transferee Company that there are 2 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding the meeting is *dispensed with.*

(ii) With respect to Secured Creditors:

Since it is represented by the Transferee Company that there are NIL Secured Creditors in the Company and hence the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Loan Creditors:

Since it is represented by the Transferee Company that there is1 Unsecured Loan Creditor in the Company whose consent by way of Affidavit have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

(iv) With respect to Unsecured Trade Creditors:

Since it is represented by the Transferee Company that there is 1 Unsecured Trade Creditor in the Company whose consent by way of Affidavit have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

16.The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order. Accordingly, the Application stands **allowed.**

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
R. SUCHARITHA
MEMBER (JUDICIAL)

S.priya